

The Fortuna Update

Your quarterly briefing on IR & ER, Award compliance and WHS, plus how we can help

A NOTE FROM OUR MANAGING DIRECTOR

Welcome to the first edition of **The Fortuna Update**. Each quarter we'll cut through the noise on industrial relations, employee relations, award and Fair Work changes, and workplace health & safety, and translate it into what it actually means for your business. No jargon, no 40-page bulletins, just the practical, "here's what to check this quarter" version.

2026 has already been a big year for employers: a fresh Annual Wage Review decision, Payday Super landing on 1 July, growing enforcement of psychosocial safety obligations, and the first ever root-and-branch review of the National Employment Standards. This issue walks through what matters most for WA employers right now.

As always, if anything here raises a flag for your business, we're one call away.

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SECTION 01

IR & ER Update

The four biggest industrial and employee relations developments this quarter, and what they mean on the ground.

Annual Wage Review 2026: award rates up 4.75%, minimum wage breaks \$1,000/week

+4.75%

Increase to modern award minimum rates, effective from the first full pay period on or after 1 July 2026

\$26.44/hr

New National Minimum Wage: \$1,004.90/week, the first time it has topped \$1,000

The Fair Work Commission also began a three-stage process to phase out the lowest award classification (C13), restructuring the bottom of the award pay scale. Worth tracking if your rates sit near that level.

What this means for you: if you haven't already updated pay rates for 2026/27, this is overdue and accruing risk with every pay run. We can run a same-week rate check across your award(s).

Payday Super starts 1 July 2026

Super guarantee contributions must now be paid **at the same time as wages** (weekly, fortnightly or monthly) rather than quarterly, and must land in the employee's fund within **7 business days** of payday. A new "qualifying earnings" measure replaces ordinary time earnings, and funds must be able to receive contributions via the National Payments Platform. Missing the window can trigger ATO penalties and interest, even where unintentional.

What this means for you: payroll cut-offs and super clearing house timing need to be re-checked against the new 7-day rule; this is a process risk, not just a finance one.

First-ever full review of the National Employment Standards

The Government has launched the first comprehensive review of the NES since the Fair Work Act began. Alongside it, the Commission is examining regulated labour hire arrangements, and award flexibility (rostering, penalty rates) in hospitality and retail is under active review. None of this changes your obligations today, but it's the clearest signal yet that further reform is coming.

Labour hire & "Same Job, Same Pay" orders continue to land

Regulated labour hire orders (requiring labour hire workers to be paid at least what the host's enterprise agreement would pay) are now well-established, with orders and matters under consideration worth more than \$200 million nationally. If you host labour hire workers alongside an EA, this remains live.

Sources: Fair Work Commission Annual Wage Review 2026 Decision; Fair Work Ombudsman ([fairwork.gov.au](https://www.fairwork.gov.au)); Australian Taxation Office, Payday Super; Department of Employment and Workplace Relations.

SECTION 02

Award Compliance Corner

Award underpayment remains one of the most common, and most expensive, risks we see in WA businesses. Here's what to check this quarter.

1. Rates

Confirm every classification under your award(s) reflects the 4.75% increase from the first full pay period on or after 1 July 2026, including allowances and penalty rates, which are often missed.

2. Casual conversion

80+ modern awards now carry a casual conversion / "employee choice" pathway. Long-term regular casuals may trigger active obligations to respond to conversion requests.

3. Classifications

With the FWC beginning to phase out the C13 classification, businesses using entry-level classifications should watch for flow-on structural changes in future reviews.

4. Rostering & overtime

Hospitality and retail award flexibility is under active FWC review, with potential changes to penalty rates and rostering rules worth watching if these awards apply to you.

Fortuna Award Compliance Review: classification checks, pay rate verification, penalty & overtime compliance, allowances and entitlements, rostering compliance and casual conversion obligations, reviewed and reported back with a clear remediation plan.

CLIENT CASE STUDY

Five years underpaid, and how it was fixed

Sporting Club, 50+ employees: Award compliance correction

Issue	Staff had been paid under the wrong award for five years.
Action	Fortuna conducted a full award compliance review, corrected classifications, updated contracts and implemented new payroll processes.
Outcome	Compliance restored, financial risk mitigated, and directors protected from future liability.

With award rates rising again this quarter and classification structures shifting, this is exactly the kind of exposure we see most often, and it's entirely preventable with a proactive review.

Sources: Fair Work Commission; Fair Work Ombudsman; Fortuna People Solutions client files (client identity de-identified with permission).

SECTION 03

WHS & Safety Focus

Three WHS developments worth putting on your radar this quarter, particularly for WA-based employers.

Psychosocial hazards: guidance is now enforcement

Psychosocial hazards (bullying, excessive workload, fatigue, poor workplace behaviour and emotional harm) are now a regulated, enforceable obligation in every Australian jurisdiction. PCBU's must actively identify, assess and eliminate (or minimise so far as reasonably practicable) these risks, not just respond after a complaint. Psychological injury claims already cost employers more than double the average physical injury claim, with materially longer recovery times and a higher likelihood of the employee leaving the workforce altogether.

What this means for you: a documented psychosocial risk assessment is no longer "nice to have." If you can't point to one for your business today, that's your first action item this quarter.

WorkSafe WA reviewing the WHS Act 2020

WorkSafe WA is conducting its first five-yearly review of the Work Health and Safety Act 2020, alongside a national best-practice review of the model WHS laws being run by Safe Work Australia. Both reviews are expected to report in 2026, and we'll keep you posted on anything that changes obligations for WA employers.

New exposure limits for hazardous chemicals from 1 December 2026

New workplace exposure standards for hazardous chemicals take effect on 1 December 2026. If your business handles hazardous chemicals, dust or airborne contaminants, including in construction, resources, agriculture or facilities management, your safety documentation and monitoring should be reviewed well ahead of this date, not in the weeks before it lands.

Fortuna WHS Audit: gap analysis, safety documentation & registers, risk assessments, incident reporting processes, safety training & inductions and contractor compliance checks, delivered as part of our retainer or as a standalone review.

Sources: Safe Work Australia; WorkSafe WA; Western Australian Legislation (Work Health and Safety Regulations Amendment Regulations (No. 2) 2026); Norton Rose Fulbright WHS Law Briefing.

SECTION 04

Respect@Work Spotlight: the Positive Duty has teeth

The obligation to prevent sexual harassment before it happens is no longer theoretical. It's an active enforcement priority.

The Australian Human Rights Commission's power to investigate and enforce the positive duty to eliminate sexual harassment is now firmly in an enforcement phase: the Commission has confirmed six formal inquiries underway, a further 18 organisations being monitored, and roughly 140 complaints relating to potential non-compliance. A statutory review of the positive duty is also scheduled this year, which will include the AHRC publishing de-identified compliance and enforcement data, putting employer conduct under a brighter spotlight than ever before.

What this means for you: the positive duty requires proactive, documented prevention (policies, training, risk assessments and clear reporting pathways), not just a reactive complaints process. Waiting for a complaint before acting is now itself a compliance gap.

A simple self-check

Ask yourself honestly: do you have an up-to-date sexual harassment & bullying policy, has it been trained into your team in the last 12 months, do managers know how to respond to an informal complaint, and could you produce a documented risk assessment if the AHRC asked tomorrow? If any answer is "no," that's where to start.

Looking ahead to next issue

In our December edition, we'll cover the outcomes of the NES review submissions, any further Fair Work Commission award flexibility decisions for hospitality and retail, and a first look at how businesses are preparing for Payday Super's first full quarter in practice.

Sources: Australian Human Rights Commission; Attorney-General's Department; Respect@Work Act 2022 (Cth).

SECTION 05

How Fortuna Can Help

Everything in this newsletter (wage reviews, award risk, WHS obligations, Respect@Work) is work we do for clients every day. Here's the full range of support available to you.

HR Retainer	One dedicated consultant who knows your business, same-day priority response, no lock-in contract, unlimited access to our HR/WHS template library, and legal backup through Fortuna's employment lawyers.
Award & Compliance	Classification checks, pay rate verification, penalty & overtime compliance, allowances, rostering and casual conversion reviews.
WHS Audits	Gap analysis, safety documentation & registers, risk assessments, incident reporting processes, safety training/inductions and contractor compliance checks.
HR Documentation	Employment contracts, policies & procedures, position descriptions, performance frameworks, induction packs and employee handbooks.
Investigations	Licensed workplace investigators for bullying, harassment and Respect@Work matters, plus insurance investigations, private investigations/surveillance and mediation.
Recruitment	End-to-end recruitment, confidential executive search, onsite recruiters for large projects, and mobilisation management for resources-sector clients.
Projects & Advisory	Enterprise agreements, redundancy/restructure support, M&A people integration, leadership training, remuneration benchmarking and HRIS rollout support, fixed-fee or hourly.

Not sure where you stand? Start with a health check.

Book a complimentary 30-minute call and we'll flag your top 3 risks from this issue (wages, WHS or Respect@Work) specific to your business.

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